

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Kulig	Team: Team # 5	CCRB Case #: 201308743	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 09/18/2013 3:20 PM	Location of Incident: Bay Street and Clinton Street	18 Mo. SOL 3/18/2015	Precinct: 120
Date/Time CV Reported Wed, 09/18/2013 3:49 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/18/2013 3:49 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Frank Desiderato	13351	936473	120 PCT
2. SGT Dhanan Saminath	04270	935678	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Dhanan Saminath	Abuse: Sgt. Dhanan Saminath stopped § 87(2)(b)	A . Substantiated
B . POM Frank Desiderato	Abuse: PO Frank Desiderato strip-searched § 87(2)(b)	B . Unsubstantiated
C . POM Frank Desiderato	Abuse: PO Frank Desiderato searched § 87(2)(b)	C . Unsubstantiated
D . POM Frank Desiderato	Discourtesy: PO Frank Desiderato spoke rudely to § 87(2)(b)	D . Unsubstantiated
E . POM Frank Desiderato	Force: PO Frank Desiderato hit § 87(2)(b) against a vehicle.	E . Substantiated
F . POM Frank Desiderato	Force: PO Frank Desiderato used physical force against § 87(2)(b)	F . Exonerated
G . SGT Dhanan Saminath	Force: Sgt. Dhanan Saminath used physical force against § 87(2)(b)	G . Exonerated

Case Summary

Allen § 87(2)(b) filed this complaint on behalf of § 87(2)(b) over the telephone with the CCRB on September 18, 2013 (encl. 5A-5B).

At approximately 3:20 p.m. on September 18, 2013, § 87(2)(b) was stopped by Sgt. Dhanan Saminath and PO Frank Desiderato of the 120th Precinct in the vicinity of Bay Street and Clinton Street in Staten Island. The following allegations resulted:

- **Allegation A – Abuse of Authority: Sgt. Dhanan Saminath stopped** § 87(2)(b) § 87(2)(g) It is therefore recommended that **Allegation A** be substantiated.
- **Allegation B – Abuse of Authority PO Frank Desiderato strip-searched** § 87(2)(b)
- **Allegation C – Abuse of Authority: PO Frank Desiderato searched** § 87(2)(b) § 87(2)(g) It is therefore recommended that **Allegations B and C** be unsubstantiated.
- **Allegation D – Discourtesy: PO Frank Desiderato spoke rudely to** § 87(2)(b) § 87(2)(g) It is therefore recommended that **Allegation D** be unsubstantiated.
- **Allegation E – Force: PO Frank Desiderato hit** § 87(2)(b) **against a vehicle.** § 87(2)(g) It is therefore recommended that **Allegation E** be substantiated.
- **Allegation F – Force: PO Frank Desiderato used physical force against** § 87(2)(b)
- **Allegation G – Force: Sgt. Dhanan Saminath used physical force against** § 87(2)(b) § 87(2)(g) It is therefore recommended that **Allegations F and G** be exonerated.

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the § 87(2)(b) on Rikers Island on October 24, 2013 (encl. 6A-6C).

At approximately 3:20 p.m. on September 18, 2013, § 87(2)(b) was on his way to § 87(2)(b) in Manhattan, when he was stopped by two police officers, identified by the investigation as Sgt. Dhanan Saminath and PO Frank Desiderato. § 87(2)(b) had left his house, located at § 87(2)(b) in Staten Island, and was walking to the Staten Island Ferry. He had missed his bus. He was walking quickly while looking behind him to see if the bus was coming. § 87(2)(b) was alone.

After walking approximately 15 minutes, § 87(2)(b) observed an unmarked navy blue Ford, which he later learned was a police vehicle, driving next to him at a speed of approximately 10 miles per hour. At this point, § 87(2)(b) was in front of a supermarket in the vicinity of Bay Street and Clinton Street. There were other people outside.

The officer in the passenger seat, Sgt. Saminath, who § 87(2)(b) described as a 6'0" Indian man in his 30s with an average build and black hair, smiled at § 87(2)(b) as if he knew him. At the time, § 87(2)(b) did not know Sgt. Saminath was an officer. He gave him a "funny" look, which he described as having his upper lip slightly raised. He turned around and kept walking.

The vehicle pulled up next to § 87(2)(b) and Sgt. Saminath told him to stop. He replied, "Excuse me, sir. Y'all don't even know me." He then explained to the officers that he was on his way to § 87(2)(b) in Manhattan. Sgt. Saminath said, "What's your name? I know you. I know you." § 87(2)(b) replied, "My name is § 87(2)(b) and I'm trying to go to § 87(2)(b)." Sgt. Saminath then told him, "Slow down. Why are you in such a rush?" § 87(2)(b) repeatedly told the officers that he needed to go to his program and did not want to get "violated."

Eventually, PO Desiderato, the officer in the driver seat who § 87(2)(b) described as a 6'1" tall, 40 or 41-year-old white man with a heavy build and a bald head, became angry. § 87(2)(b) presumed that it was because he saw that § 87(2)(b) was trying to "get going." He got out of the car and began walking towards § 87(2)(b) while taking out his handcuffs. He did not say anything or make any commands to § 87(2)(b) at this time. § 87(2)(b) gave PO Desiderato his hands freely. He did not make any movements with his arms. PO Desiderato tightly placed the handcuffs on § 87(2)(b) cutting his arm and middle finger, and began "wrestling" with him. Initially, § 87(2)(b) stated that PO Desiderato "threw" him onto the back of the car. He later stated that PO Desiderato "put" him against the car. § 87(2)(b) was positioned with his head and chest against the rear window of the car. His head was turned to his right.

PO Desiderato searched § 87(2)(b) at the back of the police vehicle. § 87(2)(b) said, "I don't got nothing! Let me go!" PO Desiderato lifted § 87(2)(b)'s genitals with his hands and opened his pants and looked inside. He put his hands inside of § 87(2)(b)'s hoodie and pants pockets. Sgt. Saminath got out of the vehicle at this point.

PO Desiderato kicked § 87(2)(b)'s legs open wider. He said, "I don't got nothing. I'm just trying to go to my program." His finger was bleeding from the handcuffs, and he yelled, "What are you doing? You cut me!" He lifted his head approximately nine inches off the car and said, "Get these cuffs off me! What the fuck! Why are y'all arresting me? I'm going to my program!" PO Desiderato told him, "Shut the fuck up." He then slammed § 87(2)(b)'s head against the vehicle with his left hand. The left side of § 87(2)(b)'s head made contact with the car. § 87(2)(b) was in handcuffs at this point and was not doing anything with his body.

A marked police car pulled up while § 87(2)(b) was being searched. An unidentified officer, who § 87(2)(b) described as a 5'8"-5'9" tall, 31-year-old Asian man with black hair and a slim build, arrived on scene. Sgt. Saminath and PO Desiderato grabbed him and pushed him towards the car door. The officer in the marked vehicle held the door open. PO Desiderato and Sgt. Saminath squeezed his arm and grabbed him by his neck and hoodie. His breathing was never restricted. While § 87(2)(b) was being brought to the car, he kept asking why he was being arrested and was attempting to stop his body. The officers pushed him forward. § 87(2)(b) eventually got into the vehicle on his own.

During the incident, approximately five to seven people stopped to watch what was happening. They stood about five steps away. They were taking pictures and videos on their phones and were saying, "Oh my God." § 87(2)(b) did not know if they had any conversation with the officers.

§ 87(2)(b) was taken to the stationhouse, where he was charged with § 87(2)(b), § 87(2)(a). There, he

requested medical attention from an unidentified white male officer with black hair because his finger was bleeding. He could not remember exactly what he said or how the officer responded. Initially, he stated that he requested a Band-aid. He later stated that when he requested medical attention, the officer said, "I don't know, man. I'm sorry. I can't help you with that. I'll see if I can get you a bandaid." He gave § 87(2)(b) a bandaid, and at some point he was also given an alcohol pad and an ice pack.

§ 87(2)(b) was taken upstairs to a detective's office, where he was shown a video of something he had done in July of 2013. § 87(2)(b) stated that PO Desiderato whited out his name on his property voucher.

§ 87(2)(b) had a lump on his forehead, bruises around his neck, and scrapes on his wrist and finger from the incident. The scrapes were caused by the handcuffs; the bruises on his neck were from the officers squeezing him; and the lump on his forehead was from PO Desiderato slamming his head against the car.

Complainant/Witness: § 87(2)(b)

- § 87(2)(b)

CCRB Statement

§ 87(2)(b) provided statements pertaining to the incident during his initial complaint on September 18, 2013 and over the telephone on November 18, 2013 (encl. 7A). § 87(2)(g)

At approximately 3:20 p.m. on September 18, 2013, § 87(2)(b) and his friends § 87(2)(b) and § 87(2)(b) were walking past Western Beef, located at Bay Street and Clinton Street in Staten Island, when two police officers, Sgt. Saminath and PO Desiderato, pulled up next to a male, identified by the investigation as § 87(2)(b). The officers grabbed him and said something to him, to which he replied, "Why are you doing this?" One of them then called him an asshole.

§ 87(2)(b) was handcuffed. The officer who was identified by the investigation as PO Desiderato, and who § 87(2)(b) described as a 5'11"-6' tall, 200-225 lb., 30 to 34-year-old white male with a crew cut, started hitting him. He slapped him twice with an open hand, and § 87(2)(b) dropped to one knee. He was not resisting. PO Desiderato and Sgt. Saminath lifted him up and started "throwing him around." They grabbed § 87(2)(b) and bent his wrist. They also slammed his face into the back of the vehicle.

§ 87(2)(b) recorded the incident on his phone. When the officers realized this, one of them put his hand in § 87(2)(b)'s pocket, pulled it out, and said that § 87(2)(b) had bitten him. § 87(2)(b) stated that § 87(2)(b)'s face was "faceplanted" into the car at this point, so there is no way he could have bitten the officer. § 87(2)(b) did not further elaborate on what he meant by "faceplanted."

During his initial complaint, § 87(2)(b) stated that he asked all the officers for their badge numbers. PO Desiderato told him to "get the fuck out of here" and left. He did not repeat this allegation during his telephone statement.

Nine phone calls were placed to § 87(2)(b) between September 24, 2013 and December 2, 2013. § 87(2)(b) answered one of the phone calls but could not talk because he was at work. During the rest of the phone calls, voicemails were left when available. The number was out of service during three of the calls, and the voicemail box was full during three of the calls. A first please call letter was sent on September 24, 2013. A final please call letter was sent on October 28, 2013. The letters were not returned by the United States Postal Service. § 87(2)(b) was contacted through his friend, § 87(2)(b) on November 18, 2013. He was scheduled for an interview at the CCRB on November 22, 2013. He missed his appointment

without calling in advance to cancel or reschedule. A NYC Department of Corrections search on February 7, 2013 yielded no results for § 87(2)(b). As of the date of this report, § 87(2)(b) has made no attempts to contact the CCRB.

Witness: § 87(2)(b)

- § 87(2)(b)

CCRB Statement

§ 87(2)(b) provided a telephone statement on November 18, 2013 (encl. 7A).

At approximately 3:20 p.m. on September 18, 2013, § 87(2)(b) was walking in the vicinity of Bay Street and Clinton Street in Staten Island with § 87(2)(b) and an individual named “§ 87(2)(b)” when he observed several police officers, two of which were identified by the investigation as Sgt. Saminath and PO Desiderato, “jump out” on a young black man, identified by the investigation as § 87(2)(b). § 87(2)(b) had simply been standing in front of a grocery store. § 87(2)(b) stood approximately 10 yards away.

The officers began making derogatory statements to § 87(2)(b). One of them said, “What are you doing?” and called him an “asshole.” § 87(2)(b) replied back, “Don’t call me an asshole.” He then called the officers assholes. They told him, “Come over here,” and he said, “For what?”

The officers started “raising their hands” and “manhandling” § 87(2)(b). They grabbed him, and the officer who § 87(2)(b) described as a “bigger” white male, PO Desiderato, slapped him across the face with an open hand. § 87(2)(b) said, “Relax. Get your hands off me.” They pushed him against the car, and PO Desiderato banged his head against the top of the car. The officers then searched him.

One of the officers put his hand in § 87(2)(b)’s back right pocket. As he pulled his hand out, he said, “Oh, he just bit me.” § 87(2)(b) said, “Officer, how did he bite you if your hand was in his pocket?”

The officers took § 87(2)(b) away. They accused § 87(2)(b) of resisting arrest, even though he was not resisting. Unidentified police officers in a marked vehicle showed up later. These officers said that they did not know why the male was arrested and that he did not do anything.

Five phone calls were placed to § 87(2)(b) between November 6, 2013 and November 26, 2013. The phone number could not accept calls during the first two attempts. On the third attempt, § 87(2)(b) scheduled an interview for November 22, 2013. He missed his scheduled appointment without calling in advance to cancel or reschedule. Two additional calls were placed to § 87(2)(b) on November 22, 2013 and November 26, 2013. The number could not accept calls. A missed appointment letter was sent to § 87(2)(b) on November 22, 2013. A final please call letter was sent on November 26, 2013. The letters were not returned by the United States Postal Service. A NYC Department of Corrections search on February 7, 2013 yielded no results for § 87(2)(b). As of the date of this report, § 87(2)(b) has made no attempts to contact the CCRB.

Attempts to Contact Civilians

Five phone calls were placed to § 87(2)(b) between November 6, 2013 and November 26, 2013. Voicemails were left each time. A first please call letter was sent on November 7, 2013. A final please call letter was sent on November 22, 2013. The letters were not returned by the United States Postal Service. A New York City Department of Corrections search on February 7, 2014 yielded no results for § 87(2)(b).

A first please call letter was sent to § 87(2)(b) on November 7, 2013. The letter was returned by the United States Postal Service. It could not be sent without a surname.

NYPD Statements:

Subject Officer: SGT. DHANAN SAMINATH

- *Sgt. Saminath, a § 87(2)(b) white man with black hair and brown eyes, was § 87(2)(b) old at the time of the incident.*
- *On the day of the incident, Sgt. Saminath worked between 9:30 a.m. and 6:14 p.m. He was the 120th Precinct anti-crime supervisor, and he was partnered with PO Frank Desiderato. He was dressed in plain clothes and worked in unmarked vehicle number 1452, a black Ford Fusion.*

Memo Book (encl. 8A-8C)

At 3:15 p.m., Sgt. Saminath observed a black male fitting the description of a male with an active ID # § 87(2)(b) for a past burglary. He gave a false name after being warned numerous times. He gave “§ 87(2)(b)”. However, his real name is § 87(2)(b). He became aggressive when he was asked to produce identification, and called PO Desiderato an “asshole,” causing public alarm and a crowd to gather. PO Desiderato attempted to place § 87(2)(b) under arrest, but he resisted by flailing his arms and holding them against his body. When § 87(2)(b) was debriefed at the precinct, he confessed to the burglary for which he had an I-Card. At 3:25 p.m., Sgt. Saminath arrived at the 120th Precinct.

CCRB Statement

Sgt. Saminath was interviewed at the CCRB on January 30, 2014 (encl. 8D-8F).

At approximately 3:15 p.m. on September 18, 2013, Sgt. Saminath was driving with PO Desiderato on Bay Street in Staten Island, when he observed an individual known to commit burglaries, who he knew by name as § 87(2)(b) § 87(2)(b) was approximately 300 feet away, near the intersection of Clinton Street, when Sgt. Saminath first saw him. He was walking in the same direction the officers were driving and was moving his head back and forth. The police vehicle was moving at approximately 25 miles per hour. Sgt. Saminath was in the passenger seat, and PO Desiderato was the driver.

Sgt. Saminath first became familiar with § 87(2)(b) a few months prior to the incident, when § 87(2)(b) was arrested by other officers from the 120th Precinct. Sgt. Saminath did not recall what month the arrest took place, but he remembered that the reason for the arrest was that § 87(2)(b) and another individual trespassed into a backyard with an imitation pistol in a burglary-prone location. Sgt. Saminath also believed at the time that there was an open I-Card for § 87(2)(b) in which he was listed as a person of interest in a burglary. At the time, he did not know if § 87(2)(b) was suspected of having committed the burglary, though he later admitted to it. During the burglary, § 87(2)(b) entered an open gate, went into a house, and removed a bicycle and other property. Sgt. Saminath became aware of the I-Card from a poster, which the anti-crime team had displayed about a month prior to the incident. § 87(2)(b)'s name and description were listed on the poster. Sgt. Saminath did not recall what other descriptors were on the I-Card. He knew § 87(2)(b) was approximately 5'11" tall and had a thin build.

Sgt. Saminath and PO Desiderato slowly pulled up next to § 87(2)(b) § 87(2)(b) addressed Sgt. Saminath through his open window. He said, “Are you guys the police?” Sgt. Saminath said, “Yes.” § 87(2)(b) asked, “Where’s your badge?” Sgt. Saminath showed him his shield. He had not intended to stop § 87(2)(b) at this time. His intention was only to observe where § 87(2)(b) was going. At the time, the anti-crime team was addressing burglary conditions in the area near Jersey Street and “the park,” which was nearby. There had been a number of burglaries around the time of the incident.

§ 87(2)(b) then started to “berate” the officers. He said, “What the fuck are you here for?” He used other profanities, which Sgt. Saminath could not recall. A large crowd of approximately 10-15 people began to gather. They stood approximately 10 feet away from § 87(2)(b) and watched what was going on. At this point, Sgt. Saminath and PO Desiderato got out of the vehicle with the intention of issuing § 87(2)(b) a summons for disorderly conduct.

Sgt. Saminath and PO Desiderato requested § 87(2)(b)'s identification. He said something along the lines of, “I’m not giving you nothing.” Sgt. Saminath asked him several times for his identification, but he refused to hand it over. He gave no indication that he was ever going to provide his identification. He also provided a false name, which Sgt. Saminath knew was incorrect. At this time, Sgt. Saminath decided to place § 87(2)(b) under arrest.

§ 87(2)(b) resisted being handcuffed by holding his arms against his chest with his hands clenched into fists. He was positioned with the front of his body towards the back of the police vehicle, and the officers attempted to get his arms behind his back. § 87(2)(b) kicked at the officers to try to get them off balance. Sgt. Saminath stood at § 87(2)(b)'s side, and PO Desiderato stood next to him. Eventually, they were each able to grab hold of one of his arms and pull them behind his back. § 87(2)(b) was pulling against Sgt. Saminath's hold, so Sgt. Saminath had to apply some force to pull his hand behind his back. No other force was used to handcuff him. § 87(2)(b)'s chest was making contact with the police vehicle.

After § 87(2)(b) was handcuffed, he was searched for weapons. PO Desiderato conducted the search. He reached inside of § 87(2)(b)'s pants pockets. Sgt. Saminath did not recall seeing anything in his pockets. § 87(2)(b) remained in the same position while he was searched. He was then turned around so the officers could check his front pockets. The crowd of people remained at the location. Sgt. Saminath did not recall what they were doing, but he heard “loud noises.” He had no interaction with them.

§ 87(2)(b) resisted the officers' attempts to place him in the vehicle. He was spitting and threatening to kill them. He tried to prevent the officers from placing him inside the vehicle with his legs. Once they sat him down, they picked up his legs and put them inside. Sgt. Saminath did not recall if he or PO Desiderato placed him in the vehicle. There were no other officers on scene.

§ 87(2)(b) was taken to the precinct stationhouse. He never requested medical attention there, and Sgt. Saminath did not recall seeing any injuries on him. During his CCRB interview, he reviewed the medical treatment of prisoner report and confirmed that it was his signature on the document. He did not recall signing it or seeing any of the documented injuries on § 87(2)(b). He did not recall anything happening during the incident which could have caused a bruise to § 87(2)(b)'s lower lip. He stated that § 87(2)(b)'s finger could have been cut while they were handcuffing him.

Sgt. Saminath also reviewed the Stop, Question, and Frisk Report for § 87(2)(b). He stated that he considered § 87(2)(b)'s moving his head back and forth to be furtive movements. This, paired with the fact that he fit a description, was what initially drew the officers' attention. However, he was not actually stopped until he began cursing at them. § 87(2)(b) was only frisked and searched after he was placed in handcuffs. No hard object was ever recovered. Sgt. Saminath clarified that the reason for the search was to make sure he did not have any hard objects.

Sgt. Saminath denied ever seeing PO Desiderato lift up § 87(2)(b)'s genitals or open his pants and look inside. He denied seeing PO Desiderato kick § 87(2)(b)'s legs open or tell him, “Shut the fuck up.” He did not see PO Desiderato slam § 87(2)(b)'s head against the car, and he never heard § 87(2)(b) complain that PO Desiderato had done this. He never pushed § 87(2)(b) or squeezed his arm or neck while placing in the police vehicle. He did not see Sgt. Saminath do this. He never saw any bruises on § 87(2)(b)'s neck. He denied calling § 87(2)(b) an “asshole” or hearing PO Desiderato do this. He did not slap § 87(2)(b) across the

CCRB Statement

PO Desiderato was interviewed at the CCRB on January 30, 2014 (encl. 9L-9N).

At approximately 3:05 p.m. on September 18, 2013, PO Desiderato and Sgt. Saminath were driving eastbound on Bay Street in Staten Island when they recognized an individual, § 87(2)(b) who was wanted for a burglary. PO Desiderato did not recall how far away § 87(2)(b) was when they first saw him. PO Desiderato was driving, and Sgt. Saminath was in the passenger seat. PO Desiderato did not recall how fast they were driving. He did not recall if § 87(2)(b) was walking in the same direction or the opposite direction they were driving. He thought that § 87(2)(b) may have been standing still. There were other people in a nearby shopping center, but there was no one else with § 87(2)(b).

PO Desiderato stated that when he first saw § 87(2)(b) he recognized him as someone who had done robberies in the past. PO Desiderato had never arrested him, and he did not remember any specific occasions when he was arrested. He did not know if he ever saw § 87(2)(b) in person before this day, but he saw pictures of him. Sgt. Saminath indicated that he also recognized § 87(2)(b). He said, "I think that's § 87(2)(b). Let's see what he's up to. Let's go talk to him." When Sgt. Saminath said his name, PO Desiderato remembered that § 87(2)(b) was wanted for a burglary. He said to Sgt. Saminath, "I think he's wanted for a burg." PO Desiderato recalled seeing a wanted poster for § 87(2)(b). He did not recall when he saw the poster in relation to the incident. He did not remember the details of the poster, but he recognized § 87(2)(b)'s name and face from it. PO Desiderato did not recall if the wanted poster had any other description, but usually height and weight are listed. PO Desiderato was not sure if § 87(2)(b) was wanted for questioning or for arrest. § 87(2)(b) had an open I-Card for the burglary, but PO Desiderato did not know if he ever saw it prior to this day. Once they recognized § 87(2)(b) the officers approached him with the intention of arresting him for the open I-Card, once his identity was confirmed. PO Desiderato also indicated that they wanted to question him about the burglary. He did not recall if he and Sgt. Saminath discussed their intent.

PO Desiderato turned the vehicle around and pulled up next to § 87(2)(b) the passenger side facing him. They rolled the window down, and PO Desiderato confirmed that he recognized him. § 87(2)(b) immediately became "abusive and combative." He began cursing and screaming. He said, "What the fuck are you looking at? Why are you fucking bothering me? Leave me the fuck alone." PO Desiderato could not remember what else he said. He did not recall if he or Sgt. Saminath first addressed § 87(2)(b). He did not recall the nature of the conversation or anything else that was said during the interaction. At some point, PO Desiderato requested § 87(2)(b)'s identification in order to verify his identity. § 87(2)(b) refused to provide it. PO Desiderato asked approximately four or five times, and § 87(2)(b) never gave any indication that he was going to hand it over.

PO Desiderato and Sgt. Saminath both stepped out of the vehicle. PO Desiderato told § 87(2)(b) he was under arrest. He did not recall if he issued § 87(2)(b) any orders. § 87(2)(b) continued cursing and screaming. He stood a couple feet away from the passenger door at this point. PO Desiderato took his handcuffs out and attempted to place them on § 87(2)(b). He said, "Put your hands behind your back" at least five times. At this time, § 87(2)(b) put two hands on PO Desiderato's chest and pushed him. PO Desiderato wrapped his arms around the top of § 87(2)(b)'s body from the back and pushed him against the car. § 87(2)(b)'s chest and torso made contact with the car. He flailed his arms, swung his elbows, and kicked his legs. He made contact with PO Desiderato's right shin approximately two or three times. PO Desiderato did not sustain any injuries.

PO Desiderato eventually overcame § 87(2)(b)'s resistance by grabbing his arms. He placed § 87(2)(b) in handcuffs. He did not recall what Sgt. Saminath was doing at this time.

After placing § 87(2)(b) in handcuffs, PO Desiderato searched § 87(2)(b) for weapons.

He searched § 87(2)(b)'s entire body, patting his waist and legs and reaching into his pockets. He did not recall what § 87(2)(b) was wearing or what pockets he had. He did not recall if § 87(2)(b) had anything in his pockets. He did not recall how § 87(2)(b) was positioned or whether his chest was making contact with the back of the police vehicle at this time. PO Desiderato denied lifting § 87(2)(b)'s genitals with his hand during the search. He did not see Sgt. Saminath do this. He denied opening § 87(2)(b)'s pants and looking inside, and he never saw Sgt. Saminath do this. At no point did he ever reach inside of § 87(2)(b)'s waistband. § 87(2)(b) was placed in the back of the police vehicle. He resisted while he was being placed inside. He was yelling, stiffening his body, and refusing to walk. PO Desiderato did not recall what § 87(2)(b) was saying. He did not say anything to § 87(2)(b) other than, "You're under arrest." Neither he nor Sgt. Saminath ever raised their voices. PO Desiderato did not recall if any other officers responded to the scene.

There were other civilians on the street at the time. PO Desiderato estimated that there were more than five. He did not recall how close they were standing. He did not know if they were watching what was going on. He did not recall if they were reacting to the incident or making any comments. He had no verbal interaction with them.

§ 87(2)(b) was transported to the 120th Precinct stationhouse. PO Desiderato processed his arrest and debriefed him for his open I-Card. PO Desiderato did not recall seeing any injuries on him. He did not hear § 87(2)(b) complain of any injuries or request medical attention.

During his CCRB interview, PO Desiderato viewed the Medical Treatment of Prisoner Report. He confirmed that he completed the form, but he did not recall doing so. He did not recall seeing a cut on § 87(2)(b)'s finger or a bruise on his lower lip. He stated that the cut could have occurred when the officers were trying to handcuff him. He did not remember anything that happened during the incident that could have caused the bruise to § 87(2)(b)'s lip. He never saw § 87(2)(b)'s head make contact with the car, and he did not see a lump on § 87(2)(b)'s forehead.

PO Desiderato denied kicking § 87(2)(b)'s legs open or ever kicking him at all. He did not slam § 87(2)(b)'s head against the vehicle, and he did not see § 87(2)(b) do this. PO Desiderato stated that it was possible that he pushed § 87(2)(b) while bringing him to the car in order to overcome his resistance. He never grabbed § 87(2)(b) on the neck or saw Sgt. Saminath do this. Neither he nor Sgt. Saminath ever slapped him in the face. Neither of them told him, "Shut the fuck up," or called him an "asshole." They did not use profanity. PO Desiderato never heard § 87(2)(b) request medical attention, but he stated that, according to the Medical Treatment of Prisoner Report, he refused medical attention.

PO Desiderato reviewed the Stop and Frisk Report. He did not recall what furtive movements led to the stop of § 87(2)(b).

NYPD Documents

Arrest Photograph (encl. 10A)

§ 87(2)(b) has two small bruises on the left side of his face – one on his forehead and the other on his cheekbone.

Command Log (encl. 10Q-10DD)

A command log entry was made for § 87(2)(b) at 3:25 p.m. His name is listed as "§ 87(2)(b) § 87(2)(b). He was charged with § 87(2)(b), § 87(2)(a) 160.50 § 87(2)(b). His mental condition was apparently normal, and he had no visible injuries.

I-Card

The I-Card was unavailable because it was vacated on the day of § 87(2)(b)'s arrest.

Complaint Report and Arrest Report

§ 87(2)(a) 160.50
[REDACTED]

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Status of Civil Proceedings

- [§ 87(2)(b)] has not filed a Notice of Claim with the City of New York as of February 7, 2014, more than six weeks after the filing deadline, with regard to the incident.

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint in which [§ 87(2)(b)] was a victim (encl. 3A).

Subject Officer CCRB History

- Sgt. Dhanan Saminath has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. 2A).
- PO Frank Desiderato has been a member of the service for nine years and there are no substantiated CCRB allegations against him. (encl. 2B-2C).

Conclusion

Identification of Subject Officers

- PO Desiderato was [§ 87(2)(b)]'s arresting officer. He generally fit the description of the officer sitting in the driver seat of the vehicle, who [§ 87(2)(b)] described as a 6'1" tall, 40-41 year old white male with a heavy build and a bald head. PO Desiderato had a memo book entry pertaining to the incident and also completed the Stop, Question, and Frisk Report and Medical Treatment of Prisoner Report for [§ 87(2)(b)]. He confirmed his involvement in the arrest during his CCRB interview. [§ 87(2)(g)]
[REDACTED]
[REDACTED]
- PO Desiderato noted in his memo book that his partner was Sgt. Saminath. Sgt. Saminath's pedigree information generally matched the description of the officer in the passenger seat, who [§ 87(2)(b)] described as a 6' foot Indian male in his 30s with an average build and black hair. Sgt. Saminath had a memo book entry pertaining to the incident and confirmed his involvement in the arrest during his CCRB interview. [§ 87(2)(g)]
[REDACTED]
[REDACTED]

Allegations Not Pleaded

- A refusal to provide name and/or shield number allegation was not pleaded against PO Desiderato. Although § 87(2)(b) made this allegation during his initial complaint, he did not repeat it during his subsequent telephone statement. § 87(2)(b) did not make this claim during his CCRB interview.
- A discourtesy allegation was not pleaded against PO Desiderato for telling § 87(2)(b) to “get the fuck out of here.” § 87(2)(b) did not repeat this claim during his telephone statement, and § 87(2)(b) did not allege that PO Desiderato spoke rudely to any witnesses. A discourtesy allegation was also not pleaded against PO Desiderato for calling § 87(2)(b) an “asshole” since § 87(2)(b) did not allege this.
- § 87(2)(g)
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Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Sgt. Dhanan Saminath stopped § 87(2)(b)

It is undisputed that at approximately 3:20 p.m. on September 18, 2013, § 87(2)(b) was stopped and arrested by Sgt. Saminath and PO Desiderato in the vicinity of Bay Street and Clinton Street in Staten Island.

§ 87(2)(b) stated that he was walking to the Staten Island Ferry from his home when he was stopped. He had missed the bus, so he was walking quickly and looking over his shoulder. Sgt. Saminath and PO Desiderato pulled up next to him in an unmarked police vehicle. Sgt. Saminath told him to stop. § 87(2)(b) replied, “Excuse me, sir. Y’all don’t even know me.” Sgt. Saminath said, “What’s your name? I know you. I know you.” § 87(2)(b) replied, “My name is § 87(2)(b) and I’m trying to go to § 87(2)(b).” Sgt. Saminath then told him, “Slow down. Why are you in such a rush?” § 87(2)(b) repeatedly told the officers that he needed to go to his program and did not want to get “violated.” Eventually, PO Desiderato got out of the driver side of the vehicle and placed him in handcuffs.

§ 87(2)(b) and § 87(2)(b) both stated that Sgt. Saminath and PO Desiderato pulled up to § 87(2)(b) and addressed him. § 87(2)(b) stated that they made statements such as, “What are you doing?” and “You asshole.” § 87(2)(b) replied back, “Don’t call me an asshole” and then called the officers assholes. They also told him, “Come over here,” and he replied, “For what?” § 87(2)(b) did not hear what the officers initially said to § 87(2)(b) but he heard § 87(2)(b).

§ 87(2)(b) say something along the lines of, “Why are you doing this?” One of them then called § 87(2)(b) an asshole. After this, § 87(2)(b) and § 87(2)(b) both stated that the officers handcuffed § 87(2)(b).

In his memo book entry, Sgt. Saminath stated that he observed § 87(2)(b) who fit a description of a male with an open I-Card for a past burglary. He gave a false name, and he became aggressive after he was asked to produce identification. He also called PO Desiderato an “asshole,” causing public alarm and a crowd to gather. During his CCRB interview, Sgt. Saminath stated that he recognized § 87(2)(b) on the street from previous arrests made in the 120th Precinct. He believed that there was an open I-Card for § 87(2)(b) who was a person of interest in a burglary. He did not know whether § 87(2)(b) was suspected of having committed the burglary or if he knew the person who did. He became aware of the I-Card from a poster, which the anti-crime team had displayed about a month prior to the incident. He was not planning to stop § 87(2)(b) who was moving his head back and forth as he walked. He only planned to observe where § 87(2)(b) was walking. However, when he pulled next to § 87(2)(b) § 87(2)(b) addressed him. He asked if they were the police and if he had a badge. Sgt. Saminath showed § 87(2)(b) his badge. § 87(2)(b) immediately began using profanities. He said, “What the fuck are you here for?” Sgt. Saminath could not recall what else he said. A large crowd of approximately 10-15 people began to gather. They stood approximately 10 feet away and watched what was going on. Sgt. Saminath and PO Desiderato got out of the vehicle with the intention of issuing him a summons for disorderly conduct. He requested § 87(2)(b)s identification several times, but he refused. He also provided a false name. At this point, Sgt. Saminath decided to place him under arrest.

PO Desiderato stated that when he observed § 87(2)(b) he recognized him as someone who had done robberies in the past. He did not know if he ever saw him in person, but he saw pictures of him. Sgt. Saminath also indicated to him that he recognized § 87(2)(b). He said, “I think that’s § 87(2)(b). Let’s see what he’s up to. Let’s go talk to him.” When Sgt. Saminath said his name, PO Desiderato remembered that he was wanted for a burglary. He recalled seeing a wanted poster some time before the incident. He did not remember the details of the poster, but he recognized § 87(2)(b)s face. He was not sure if § 87(2)(b) was wanted for questioning or arrest. He believed § 87(2)(b) had an open I-Card, but he did not know if he ever saw it. Believing he had an open I-Card, PO Desiderato and Sgt. Saminath intended to arrest him once they confirmed his identity. They pulled up to § 87(2)(b) and rolled the window down. PO Desiderato did not recall the nature of the conversation between § 87(2)(b) and the officers, other than that § 87(2)(b) began cursing and screaming. He said, “What the fuck are you looking at? Why are you fucking bothering me? Leave me the fuck alone.” At some point, the officers requested his identification, but he refused to provide it, even after being asked four or five times. PO Desiderato and Sgt. Saminath then stepped out of the vehicle and told him he was under arrest. PO Desiderato stated that there were more than five other people around during the incident. He did not recall how close they were standing. He did not know whether they were watching what was going on, and he did not recall if they were reacting to the incident or making any comments.

According to the Stop, Question, and Frisk Report, the factors leading to § 87(2)(b)s stop were that he fit a description and was making furtive movements. § 87(2)(b)s first name is listed as “§ 87(2)(b)” on the command log.

§ 87(2)(g)

§ 87(2)(g) The Stop, Question, and Frisk Report indicates that the reasons § 87(2)(b) was stopped were that he fit a description and was making furtive movements. § 87(2)(g)

§ 87(2)(g)

While Sgt. Saminath claimed he was only planning to observe § 87(2)(b) PO Desiderato stated that he and Sgt. Saminath approached him with the intention of arresting him and that Sgt. Saminath was the one who suggested they “see what he’s up to” and “go talk to him.”

§ 87(2)(g)

An officer may only stop an individual when he reasonably suspects that such person is committing, has committed, or is about to commit a crime. People v. DeBour, 40 N.Y.2d 210 (1976) (encl. 1A-1K).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A be substantiated.**

Allegation B – Abuse of Authority: PO Frank Desiderato strip-searched § 87(2)(b)

Allegation C – Abuse of Authority: PO Frank Desiderato searched § 87(2)(b)

It is undisputed that PO Desiderato searched § 87(2)(b) against the back of the police vehicle after he was handcuffed.

During the search, PO Desiderato put his hands in § 87(2)(b)'s hoodie and pants pockets. According to § 87(2)(b) PO Desiderato also he lifted up his genitals with his hand and looked inside his pants.

§ 87(2)(b) witnessed the search, but he did not describe it in detail. § 87(2)(b) did not mention the search during his telephone statement. Neither § 87(2)(b) nor § 87(2)(b)

corroborated § 87(2)(b)'s claim that PO Desiderato lifted his genitals and looked inside his pants.

PO Desiderato stated that § 87(2)(b) was arrested for an open I-Card. He admitted that he patted § 87(2)(b)'s waist and legs and searched his pockets. He denied lifting § 87(2)(b)'s genitals or looking inside his pants during the search. At no point did he open § 87(2)(b)'s waistband or put his hand inside. Sgt. Saminath stated that § 87(2)(b) was arrested because he acted disorderly, refused to comply with officers' orders, and resisted arrest. Sgt. Saminath did not see PO Desiderato lift § 87(2)(b)'s genitals or look inside his pants.

According to Patrol Guide section 208-03 (encl. 1N-1Z), an officer may conduct a field search/frisk incident to a lawful arrest. Patrol Guide section 208-05 (encl. 1AA-1CC) states that an officer may conduct a strip search, which is any search in which an individual's undergarments and/or private areas are exposed or in which an individual's clothing is removed, lifted up, or pulled down to expose undergarments or private areas, only when he has reasonable suspicion that an individual is concealing evidence, contraband, or a weapon.

§ 87(2)(g)

It is therefore recommended that **Allegations B and C be unsubstantiated.**

Allegation D – Discourtesy: PO Frank Desiderato spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that while he was handcuffed against the back of the police vehicle, he asked, "Why are y'all arresting me? I'm going to my program!" PO Desiderato responded, "Shut the fuck up."

§ 87(2)(b) and § 87(2)(b) both stated that the officers cursed at § 87(2)(b). They claimed that § 87(2)(b) was called an "asshole."

PO Desiderato denied telling § 87(2)(b) "Shut the fuck up" or ever using profanity. Sgt. Saminath did not hear PO Desiderato make this statement or curse at § 87(2)(b) at all during the incident.

§ 87(2)(g)

It is therefore recommended that **Allegation D be unsubstantiated.**

Allegation E – Force: PO Frank Desiderato hit § 87(2)(b) against a vehicle.

§ 87(2)(b) alleged that he was rear-cuffed and placed with his chest and face against the back of the police vehicle. At one point, he lifted his head up approximately nine inches. PO Desiderato slammed his head onto the car with his left hand. The left side of § 87(2)(b)'s head hit the car, causing a bruise on his forehead.

§ 87(2)(b) and § 87(2)(b) both corroborated § 87(2)(b)'s statement that his head was slammed against the car by PO Desiderato. § 87(2)(b) stated that PO Desiderato slammed his face into the back of the vehicle. § 87(2)(b) stated that PO Desiderato banged his head against the top of the car.

PO Desiderato denied slamming § 87(2)(b)'s head against the vehicle or ever seeing § 87(2)(b)'s head make contact with the vehicle. Sgt. Saminath denied seeing PO Desiderato slam § 87(2)(b)'s head against the vehicle. Neither PO Desiderato nor Sgt. Saminath ever saw any injuries on § 87(2)(b). They both stated that § 87(2)(b) was positioned with his chest against the police vehicle after he was handcuffed.

There is no documented injury to § 87(2)(b)'s forehead on the Medical Treatment of

Prisoner Report, though PO Desiderato indicated that § 87(2)(b) had a bruise on his lower lip. There are two bruises visible on the left side of § 87(2)(b)'s face in his arrest photograph. One is located on his forehead, and the other is on his cheekbone.

§ 87(2)(g)

Officers may use only the minimum amount of force necessary during a police incident. P.G. Section 203-11

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be substantiated.

Allegation F – Force: PO Frank Desiderato used physical force against § 87(2)(b)

Allegation G – Force: Sgt. Dhanan Saminath used physical force against § 87(2)(b)

§ 87(2)(b) admitted he was stopping his body and asking the officers why he was being arrested while he was being taken to the police vehicle. He stated that PO Desiderato and Sgt. Saminath pushed him forward and grabbed him by his neck, arm, and sweatshirt. His breathing was never restricted, but he sustained bruises on his neck.

Neither § 87(2)(b) nor § 87(2)(b) claimed to have seen the officers push § 87(2)(b) or grab him on the neck or arm while placing him in the vehicle.

Sgt. Saminath denied pushing or grabbing § 87(2)(b). He stated that § 87(2)(b) was spitting and threatening to kill the officers while they were placing him in the vehicle. He attempted to prevent himself from being placed inside with his legs. PO Desiderato also stated that § 87(2)(b) was stiffening his body and refusing to walk. He stated that he may have pushed § 87(2)(b) towards the vehicle to overcome his resistance. He denied grabbing his arm or neck.

§ 87(2)(b) had no documented bruises to his neck. There are no bruises visible in his arrest photograph, and nothing is mentioned on the Medical Treatment of Prisoner Report.

Officers may use only the minimum amount of force necessary during a police incident. P.G. Section 203-11

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations F and G** be exonerated.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date